



Memorandum

To: Chief Daniel J. Ransone

From: Robert Ruiz, Assistant City Attorney *Robert Ruiz*

Through: Thomas P. Moss, City Attorney *TPM*

Date: February 18, 2025

Re: Expenditure of Forfeiture Funds - Automated License Plate Reader (ALPR) Cameras, Accompanying Software, and Pole Installation

This Memorandum is in response to your request for an opinion on the possible expenditure of forfeiture funds. My opinion is based on the following: the information supplied in emails exchanged and meetings held between January 6, 2025, and February 12, 2025; a review of the Guide to Equitable Sharing for State, Local and Tribal Law Enforcement Agencies (2024) ("Guide"); a review of the relevant Florida Statutes; and a review of the Executive Orders, Presidential Memoranda, National Security Presidential Memoranda and Presidential Notices signed by the President of the United States through the date of this letter. Please read carefully below to ensure that I have properly summarized the facts and answered the question posed. Please notify me immediately if you have additional relevant facts or questions.

Facts

The Sunrise Police Department ("Department") is planning on purchasing ALPR cameras, accompanying software, and semi-permanent poles for camera installation to enhance its investigative capabilities. ALPR technology consists of fixed, portable, and mobile cameras which integrate with proprietary searchable databases. Fixed cameras scour a specific geographic area and transmit data back to administrators to analyze. These cameras can be installed in high-crime or high-traffic areas or on main thoroughfares to act as both added eyes for the Department and a potential deterrent to criminal activity. Portable systems often are housed in inconspicuous trailers that

can be relocated. Mobile cameras can be handheld or affixed to police cruisers and can help authorities patrol operational areas or target operations in high-crime areas. Databases with downloaded plate information can be searched using complete or partial plate numbers. Further, investigators can retrieve time and geospatial information from the databases.

The costs of the ALPR cameras, software, and installation on semi-permanent poles are not currently budgeted and are not regularly budgeted, recurring expenses. After acquisition, the cost of the accompanying camera software will become a recurring budgeted expense if the Department continues to use the cameras.

The Department is seeking an opinion letter with guidance and interpretation as to whether the costs of the ALPR cameras, accompanying software, and camera installation on semi-permanent poles are permissible uses of forfeiture funds.

Question

Is there a legal impediment to the expenditure of either federal forfeiture funds or state Law Enforcement Trust Fund (LETf) proceeds for the above-described expenditure?

Answer and Analysis

There is no legal impediment to the use of either federal forfeiture funds (i.e., Treasury shared funds and Justice shared funds) or state LETf proceeds to purchase the ALPR cameras, the accompanying software, and install the ALPR cameras on semi-permanent poles. It is my opinion the proposed expenditure is permissible as the Department is limiting the expense to solely the initial cost of the ALPR cameras, the cost of the software license for the first year, and the installation of the ALPR cameras on semi-permanent poles. Thereafter, any recurring cost (i.e., renewal of annual software license costs) would be a regularly budgeted expense.

The analysis of whether an expenditure is a permissible use of forfeiture funds involves consideration of two factors: (a) whether a purchase is a permissible agency expenditure, and (b) whether the funds are being used to supplant the agency's appropriated resources. Each of these factors is addressed below.

A. Permissible Use

The Guide sets forth the permissible uses of federal forfeiture funds. As set forth in section V.B.1.d. of the Guide, costs associated with the purchase, lease, maintenance (including repairs or service agreements), or operation of law enforcement equipment for use by law enforcement personnel that supports law enforcement activities, can be

paid using federal forfeiture funds. The ALPR camera licenses, accompanying software, and installation on semi-permanent poles appear to qualify as law enforcement equipment as they will be used by the Department as a tool to enhance the Department's investigative capabilities in several ways enumerated above, thus supporting law enforcement activities. Accordingly, it is my opinion that this expense is a permissible use of federal forfeiture funds.

Section 932.7055, Florida Statutes, provides the permissible uses of state LETF money. Pursuant to section 932.7055(5)(a), LETF proceeds:

“shall be used for school resource officer, crime prevention, safe neighborhood, drug abuse education and prevention programs, or for other law enforcement purposes, which include defraying the cost of protracted or complex law enforcement investigations, providing additional equipment or expertise, purchasing automated external defibrillators for use in law enforcement vehicles, and providing matching funds to obtain federal grants.”

As described above, the ALPR camera licenses, accompanying software, and installation on semi-permanent poles would be additional equipment used by the Department as a tool to enhance the Department's investigative capabilities in several ways enumerated above. These are fundamental law enforcement purposes and are permissible uses of LETF monies.

B. Supplantation

Section V.A.1 of the Guide specifies that agencies cannot use forfeiture funds to replace or “supplant” money that should come out of budgeted funds. Rather, forfeiture funds should increase or supplement the resources of the Department to purchase items not regularly purchased.

Based on the facts provided, it appears that the proposed expenditure is not for technology or equipment that is regularly purchased and budgeted as a recurring, annual expense. Rather, the Department has a need for new ALPR cameras (which require annual software licenses and installation to operate) that will be used to increase or supplement the existing resources of the Department. Therefore, the expenditure is increasing the Department's budget and is not supplanting other money previously budgeted in the Department's budget. As such, this expenditure does not violate the federal rule pertaining to supplanting.

Section 932.7055(5)(a), Florida Statutes, provides that forfeiture “proceeds and interest may not be used to meet normal operating expenses of the law enforcement agency.” This is a similar restriction to the federal law discussed above. Therefore,

February 18, 2025

applying the analysis above, the proposed expenditure does not violate Florida law as it is not being used to meet the Department's normal operating expenses.

Based on the facts and legal analysis set forth above, it is my opinion that the proposed expenditure for the purchase of the ALPR cameras, the first year of the accompanying software license, and the installation of ALPR cameras on semi-permanent poles are permissible expenditures of both federal forfeiture funds and state LETF proceeds.

All forfeiture expenditures require the Chief's certification. For the reasons stated above it is my opinion that you can certify the use of either federal forfeiture funds or state LETF proceeds for this expenditure. If you need further information or wish to discuss this matter further, please let me know.